

The Claremont City Council held a meeting on Wednesday, April 13, 2022, in the Council Chambers of City Hall.

The meeting was called to order by Mayor Girard at 6:30 p.m.

Members of the Council present:

Ward II Councilor James Contois
Ward I Councilor Andrew O’Hearne
Ward III Councilor Jonathan Stone
Assistant Mayor Debora Matteau
At-Large Councilor Nicholas Koloski
At-Large Councilor William Limoges
At-Large Councilor Lucas Beliveau
Mayor Dale Girard

Absent:

At-Large Councilor Matthew Mooshian

Also present:

John MacLean, Interim City Manager
Lisa Richmond, Finance Director

AGENDA CHANGES

None.

REPORT OF THE SECRETARY

A motion was made by Assistant Mayor Matteau and seconded by Councilor Beliveau to accept the minutes of the March 23, 2022, City Council meeting.

Voice vote: motion carried 7-0, Councilor Koloski abstained

MAYOR’S NOTES

Proclamation – Tom Belaire’s Retirement

Mayor Girard presented a Proclamation to Deputy Fire Chief Tom Belaire for his retirement.

Fire Chief Bryan Burr presented Deputy Chief Bellaire with a token of gratitude; a framed case filled with Mr. Bellaire's badges he has acquired throughout his years with the Claremont, NH Fire Department. Councilor Koloski, presented Deputy Chief Bellaire with a gift and thanked him for all the years they have worked together and noted Deputy Chief Bellaire's open door policy when it came to resolving citizen concerns about codes. Deputy Fire Chief Bellaire thanked the City of Claremont and Fire Department. He made note of how thankful he was that all the City departments work together, he also thanked his family for support over the years.

Proclamation – Richard Robbins' Retirement

Mayor Girard read a retirement Proclamation for Richard Robbins, a Pipe Layer for the Utilities Department at the Claremont, NH, Department of Public Works. Mr. MacLean noted to the Mayor that Mr. Robbins doesn't typically attend meetings for honors or recognition, however, he felt it was important that Mayor Girard recognized him for all of his years of contributions to the City.

CITY MANAGER'S REPORT

General Remarks

Mr. MacLean stated that Mark Brislin had given his notice of resignation to take effect in early May. He further noted that Mark has been with the City in his capacity as Parks and Recreation Director for the past eight years; and that Mark has been instrumental in the successful operations of the Community Center as well as volunteering his time to youth sports. Mr. Maclean acknowledged that Mark will be sorely missed. The City will now begin a search for Mark's replacement and determine how best to transition while the search is underway.

Mr. MacLean also reported that Nancy Merrill, Director of Planning and Development, had advised him that the recent changes to the Pleasant Street Project, as authorized by City Council, have resulted in a change order that saved the City \$19,754 and extended the project completion date by 15 days.

Mr. MacLean shared a draft budget calendar with the Council. He explained that the proposed budget must be presented to the City Council by May 2nd, and that the draft calendar indicates the dates that the City Council would meet with City staff to review their work in this regard.

Other comments included updates relative to the Central Dispatch Communications project which will be placed on the April 27th agenda, as will the Sullivan Stack which will also be placed on the April 27th Meeting agenda.

Mr. MacLean concluded his remarks by explaining that the Sullivan County ATV Club (SCATV) will be seeking permission to travel on certain Class V and Class VI roads again this year. He also noted that notification to the residents that about these roads had been expanded to include Class V roads which previously had not been required. This change results in a significant increase in postage for the SCATV to incur. Possible options with respect to the permitting process will be discussed by the City Attorney with the City Council at the appropriate meeting.

APPOINTMENT TO BOARDS AND COMMITTEES

Historic District Commission

A motion was made by Assistant Mayor Matteau and seconded by Councilor Koloski to re-appoint Richard Warlich to Seat 5 of the Historic District Commission.

Voice vote: motion carried 8-0

Mr. MacLean shared with the Council that he has appointed Marlene Boisclair to the Board of Assessors. There are now two members on the Board of Assessors, the search for a third member continues. Now that there are two members, the Board of Assessors have a Quorum and can meet.

CITIZEN'S FORUM

Gary Dickerman, Ward 3 resident and Chair of Conservation Commission, expressed to the Council that the Conservation Commission sends a report annually, but wanted to notify the Council on current events. The Ashley Ferry Boat Launch clean-up will take place on April 30th, this summer NH Fish and Game are scheduled to do repairs on the ramp. Regarding the Stevens Brook Conservation easement, the Conservation Commission are awaiting the finalization of the North and Main Street plans to locate the access point. The Conservation Commission is continuing to work on invasive plant and tree removal at Moody Park. The Conservation Commission helped develop a Tree Policy and a Litter Ordinance, which Mr. Dickerman hopes to bring in front of the Council in the near future. They are also working to designate prime wetlands within the City and the Conservation Commission will be participating in a management plan for City-owned parcels in the Cat Hole area.

OLD BUSINESS

Transfer Station RFP Update

This RFP is for the private operation (privatization) of the Transfer Station. A future

contract will be negotiated with the most qualified bidder. The RFP was modeled on the assumption that a private entity will be utilizing the current footprint at the existing location of the transfer station. Some of the items within the RFP include, but are not limited to:

- Selected firm acquiring necessary licensing and permitting for operations
- General site maintenance including daily litter control
- Personnel, materials, parts, equipment, supplies and services necessary to maintain the structures, buildings, HVAC systems, electrical equipment, instrumentation and controls, roadways, walkways and landscaping
- Responsible for property tax on leased portion of transfer station footprint which is approximately 3 acres (current footprint).

Ted Wadleigh, Assistant Director of Public Works, presented the Transfer Station RFP via PowerPoint.

Councilor Stone stated he was disappointed in the RFP, as he wanted to receive more comparable numbers from private sector to that of the City. Mr. MacLean relayed that the City would be soliciting proposals to operate. Mr. MacLean tried to clarify with the Council, that the Council wanted more information on the cost of operations vs. governmental. Councilor Stone added he and other Council members wanted to shut the Transfer Station down completely and to not use our facility at all, and to use a third-party vendor.

Councilor Koloski wanted an RFP to solicit someone to take over our facility. He is also looking for a list of fees from other communities. Councilor Koloski stated this RFP was too detailed and looked like a restrictive contract.

Mr. MacLean explained negotiations would have to happen and this RFP was mirrored on previous RFP's that have been used, because this is a significant service. He stated the closing of this facility is not restricted by this RFP. Mr. MacLean does not recommend closing the Transfer Station. Assistant Mayor Matteau expressed wanting the goal to be about providing these services to the citizens that use them, she further explained not all citizens of Claremont use the Transfer Station and that it should be operated more like an enterprise such as Water and Sewer. She stated taxpayers who don't use these services should not be burdened with these costs. She asked for the information on what would it cost to use the services outside of Claremont specifically in Newport, NH, vs. what Claremont, NH, pays now. She also asked if the Newport service would be equipped to handle the citizens of Claremont using their facilities and if they would want to.

After continued discussion by the Council, the Council would like to have more information on costs for shutting down the transfer station services, the cost along with the willingness of the Newport Transfer Station to be used by Claremont citizens. Also, the RFP should go out. Mr. MacLean noted a time frame of 45-60 days before receiving proposals, if the Council moves forward with the RFP.

Mayor Girard opened this discussion to the public

Mike Tetu, Ward 1, explained this RFP is a bad idea. He shared concern this doesn't look out for users of the transfer station. He would like to see the City save the facility. Mr. Tetu shared with the Council he has the weigh station figured out for a low expense. He would like to see this expense removed from all taxpayers. Mr. Tetu reported he can help build a shed and a weigh station for under five thousand dollars. He would like to see a change to the Fee schedule, proposing trash start to be weighed at \$0.15 per pound. He would like this to be on the Next agenda to start this proposal for June 1st, 2022.

A motion was made by Councilor Stone and seconded by Councilor Limoges to direct the City Manager to put the RFP out.

Voice vote: motion carried 7-1, Councilor Contois voted no.

Charter Amendment Vote – Public Hearing

A motion was made by Councilor Koloski and seconded by Councilor Stone that the Claremont City Council hereby submits a proposed amendment to the City Charter that seeks to alter Part I, Article III, Section 27 in order to remove the residency requirement for any potential hire for City Manager. The amendment also proposes to eliminate all pronouns provided within same. These Council-approved changes, associated with this Charter amendment, are provided below:

PROPOSED AMENDMENT TO CITY CHARTER:

Part I, Article III, Section 27 - Qualifications

Current Version

- **27. - Qualifications.**

The manager shall be chosen solely on the basis of his/her executive and administrative qualifications, but he/she need not be a resident of the city or state at the time of his/her appointment. During his/her tenure of office, he/she shall reside within the city. To avoid a conflict of interest, no person who has within two (2) years been elected by popular vote to any office in the City of Claremont shall be chosen manager.

Proposed Amendment to Section 27: The sentence “During his/her tenure of office, he/she shall reside within the city.” will be removed from the Charter. The pronouns will also be removed from this particular provision in the Charter.

- **27. - Qualifications.**

—The manager shall be chosen solely on the basis of ~~his/her~~ executive and administrative qualifications, but ~~he/shet~~ need not be a resident of the city or state at the

time of ~~his/her~~ appointment. ~~During his/her tenure of office, he/she shall reside within the city.~~ To avoid a conflict of interest, no person who has within two (2) years been elected by popular vote to any office in the City of Claremont shall be chosen manager.

New Version with Amendment:

- **27. - Qualifications.**

The manager shall be chosen solely on the basis of executive and administrative qualifications, but need not be a resident of the city or state at the time of appointment. To avoid a conflict of interest, no person who has within two (2) years been elected by popular vote to any office in the city of Claremont shall be chosen manager.

* * *

The Claremont City Council's approval of this Motion shall constitute the "report" in accordance with N.H. RSA §49-B:5. The Council also orders as well as authorizes the City Manager or designees to submit this report to the City Clerk, the N.H. Secretary of State, N.H. Attorney General's Office and the Commissioner of the N.H. Department of Revenue Administration pursuant to N.H. RSA §49-B:5.

Mayor Girard opened the public hearing

Mike Tetu, Ward 1, expressed concern and stated he doesn't like this idea. He further explained the City could hire someone from far away and the original intent for the City Manager was for them to have "Skin in the Game." He shared it would be more reasonable to set up a perimeter of location so the City Manager would be close enough to respond to emergencies.

Keith Raymond, Ward 2, agrees with Mr. Tetu and expressed the City Manager should live within a certain radius that is somewhat close to the community.

Mayor Girard closed the public hearing

Police Chief Chase, explained that a residency clause, if challenged could be deemed unconstitutional.

Assistant Mayor Matteau shared the City Manager search has been hampered because of this clause. She said while it would be great to have a City Manager living in Claremont, she is more concerned having someone who is qualified for the position.

Roll call vote:

Contois - no

O'Hearne - yes

Stone - yes

Matteau - yes
Koloski - yes
Limoges - yes
Beliveau - yes
Girard - yes
Motion carried: 7-1

NEW BUSINESS

Resolution 2022-24 Acceptance of Disc Golf Course and In-Kind Donations at Moody Park – Public Hearing

WHEREAS the Parks and Recreation Department, Parks and Recreation Commission, together with interested City residents, have undertaken a review of the feasibility of establishing an 18-hole Disc Golf Course within the limits of an existing City Park; and

WHEREAS, after several meetings and site visits, the Parks and Recreation Commission has recommended an 18-hole Disc Golf Course be established in a portion of Moody Park; and

WHEREAS the City now desires to approve the development of a Disc Golf Course for the benefit of its citizens;

NOW THEREFORE BE IT RESOLVED THAT the City Council hereby designates a portion of Moody Park, as shown on certain plans submitted to the City, as an 18-hole Disc Golf Course; and

BE IT FURTHER RESOLVED that operation of said Disc Golf Course shall be subject to such rules and regulations as are established by the Parks and Recreation Department; and

BE IT FURTHER RESOLVED to accept the materials and in-kind services valued at \$25,730.00 to be donated by Mike Lemieux, Pine Hill Construction; and

BE IT FURTHER RESOLVED that the City Manager or his designees are hereby authorized to execute all documents and undertake all actions as may be required to implement this resolution. (*Majority Vote Required*)

Mr. Brislin presented a PowerPoint for the proposed Disc Golf Course at Moody Park. He noted that the majority of the work will be done by volunteers and Pine Hill Construction. He shared to the Council this will draw people into the City of Claremont.

Alex Baldwin, shared with the Council that he brought the Disc Golf Course proposal to the Parks and Recreation Commission. He explained this is a social activity for all ages. He also

shared the area at Moody Park this course is designed for is under-utilized and Disc Golf would be a great addition.

Councilor Beliveau asked if this course can this be used for a national tournament. Alex explained the course can be used for local teams, but not national tournaments, however, this would be a great starting point for that.

Jeff Coburn, Parks and Recreation Commission Chair, shared he is sad to see Mr. Brislin leave, and wishes him and his family the best. Mr. Coburn continued to explain how the Disc Golf Course is great entertainment and is low cost. By taking up un-used territory that doesn't interfere with any trails, it will be a great addition to Moody Park and the City.

A motion was made by Councilor Beliveau and seconded by Councilor Koloski to adopt Resolution 2022-24 Acceptance of Disc Golf Course and In-Kind Donations at Moody Park.

Councilor Beliveau read the resolution into the record.

Roll call vote:

Contois - yes

O'Hearne - yes

Stone - yes

Matteau - yes

Koloski - yes

Limoges - yes

Beliveau - yes

Girard - yes

Motion carried: 8-0

Capital Improvement Plan

The Planning Board amended the FY2023-2028 CIP to include 1 new project from the Fire Department, 2 new projects from the Parks and Recreation Department, 10 new projects from City Hall and 1 new project from the Sewer Department. The Board also revised the cost and/or timing of previously approved projects on the CIP.

Ms. Merrill shared she thinks it's great to have CIP tour added to the budget meeting schedule. She explained the CIP comes from the Planning Board. A sub-committee of the Planning Board acts as the CIP Committee. They review department head requests and a series of criteria. The connection to the Master Plan is done by the full Planning Board. The idea is to connect the needs of each department with the goals of the Master Plan.

deForest Bearse, City Planner, further explained the CIP development process. She explained this year the CIP was adopted in February by the Planning Board. Afterward, they received a

number of amendments and requests for changes. The CIP Committee reconvened, and the amended CIP was adopted at the end of March.

Councilor Koloski shared there are items in this CIP he would like to see budgeted and taken care of outright like the City Hall Atrium, energy savings, and safety. Mr. MacLean added the process that is unfolding is a way of measuring importance in the context of the Master Plan. He mentioned this is not mutually exclusive with projects that have a high priority and comes down to funding for each project.

A motion was made by Councilor Limoges and seconded by Assistant Mayor Matteau that WHEREAS the Claremont Planning Board, pursuant to RSA 674:7, has prepared and approved a Capital Improvement Plan for fiscal years 2023-2028, and now desires to submit its recommendations to the Mayor and City Council for consideration as part of the Council's annual budget review process, the Claremont City Council hereby accepts the fiscal year 2023-2028 Capital Improvement Plan as approved on March 28, 2022, by the Claremont Planning Board. The Claremont City Council hereby authorizes the City Manager or his designees to incorporate the recommendations contained in the fiscal year 2023-2028 Capital Improvement Plan into the annual budget review process and authorizes the Claremont Planning Board to provide updates to the Capital Improvement Plan on an annual basis to maintain and improve the City's credit rating and fiscal health.

Voice vote: motion carried 8-0

Airport Hangar Leases

The City Manager is requesting Council approval to move forward with a newly revised Airport aircraft box hangar lease agreement for the six individual box stalls located and owned by the Airport. These new agreements were reviewed by the City's attorney. The attorney review indicated a revision was necessary in order to conform with current NH State Law. The current contract was reviewed and approved by the City Council in 2006.

At 8:01 p.m. Mayor Girard voluntarily recused himself and stepped down from the Council table because he leases a hangar at the airport.

Assistant Mayor Matteau took over the meeting.

Chief Burr presented the Airport Hangar multi year lease agreement and said he canvasses other airports in order to determine the rates.

A motion was made by Councilor Stone and seconded by Councilor O'Hearne that the Claremont City Council hereby authorizes the City Manager or his designees to enter into multi-year lease agreements with both individuals and business entities for the lease of hangar space within City-owned aircraft hangars at the Claremont Airport, at locations set

forth in the Claremont Airport Layout Plan, Airport Master Plan Update AIP#3-33-0002-0695, dated January 2006, and further, hereby ratifies the execution of those leases for aircraft hangar space in City-owned aircraft hangars in existence as of the date of the adoption of this motion.

Voice vote: 7-0, with 1 abstain, Mayor Girard.

Mayor Girard returned to the Council table at 8:06 p.m. and took over the meeting

Pleasant Street Easements

Mascoma Savings Bank has requested a rear access to their drive-through banking services from the Broad Street parking lot Map 120, Lot 87. The bank has discussed this access with the owners of two lots through which it would pass. In order to accomplish this outcome, they will need a right of way from the City. No City parking spaces will be removed as a result of this action. The City is interested in acquiring some shared parking agreements for parking in the evening on Map 120, Lot 88, which will be more accessible with this right of way.

Ms. Merrill presented the easement information in order to make access to Mascoma Bank's parking lot easier for customers.

Michael Sanderson, VP and Area Manager of Mascoma Bank, joined the Council meeting via Zoom.

Ms. Merrill explained that three private property owners involved have to agree before easement approval. Councilor Limoges asked if this will be one-way. Ms. Merrill explained it would be. Councilor O'Hearne questioned and shared concern for the current exit/entrance. Ms. Merrill replied that the parking survey has not been completed and cannot comment if the exit and entrances will stay the same. Councilor Koloski shared the same concern, Councilor Beliveau shared concern for traffic backing up Broad Street.

Mr. Sanderson, explained the entrance will be on the back part of the bank's property. Councilor O'Hearne asked what would prohibit someone to come off Glidden Street into the parking lot and go the opposite direction, Ms. Merrill suggested possible signage. Councilor Stone asked if the Police Department gave any insight into this plan. Ms. Merrill stated they have not. Assistant Mayor Matteau expressed she doesn't think this is an issue for the City, and that it is already a public right of way.

A motion was made by Assistant Mayor Matteau and seconded by Councilor Limoges that the Claremont City Council finds that the City will be benefited by creating greater connectivity among and access to the lots affected by the Pleasant Street Improvement Project, which will create more efficient use of existing parking facilities and improved

traffic flow and increase the values of the affected properties. Accordingly, the City Council hereby authorizes the City Manager or his designees to execute and take all such actions as may be required to provide an easement across Map 120, Lot 87, which is owned by the City, for access to Map 120, Lot 88, and Map 120, Lot 93, and to negotiate shared parking with Map 120, Lot 88, including to exchange cross-easements and grant other easements over the City's parking lots as the City Manager or his designee considers appropriate.

Roll call vote:

Contois - yes

O'Hearne - no

Stone - no

Matteau -yes

Koloski - yes

Limoges - yes

Beliveau - no

Girard - yes

Motion carried 5-3

Accept FEMA Funds for COVID-19 Pandemic

Ms. Richmond, explained the City applied for FEMA reimbursement for eligible COVID-related costs. As a result, the City did receive reimbursement funds.

A motion was made by Councilor Contois and seconded by Councilor Beliveau that on March 13, 2020, the President declared a Nationwide Emergency Declaration in response to the COVID-19 Pandemic, which resulted in an Emergency Disaster Declaration for the State. Following this declaration, the State of New Hampshire requested, and was approved for, a Major Disaster Declaration on April 3, 2020, which opened up Public Assistance grant funds for the state. The Claremont City Council hereby authorizes the city manager, or his designees, to accept Grant funds from FEMA 4516 DR-NH in the amount of \$197,533.09. These funds are for reimbursements of eligible costs incurred during the response of and recovery from the COVID-19 Pandemic; under Public Assistance FEMA 4516 DR-NH: COVID-19.

Roll call vote:

Contois - yes

O'Hearne - yes

Stone - yes

Matteau - yes

Koloski - yes

Limoges - yes
Beliveau - yes
Girard - yes
Motion carried: 8-0

COMMITTEE REPORTS

Councilor Stone stated the Policy Committee will come to Council with Curfew Ordinance changes.

Assistant Mayor Matteau stated the Planning Board will have changes proposed to the parking requirements in City Center.

FUTURE AGENDA ITEMS AND DIRECTIVES

A motion was made by Councilor O’Hearne and seconded by Councilor Koloski to take the Sullivan Smokestack discussion off the table.

Roll call vote:
Contois - yes
O’Hearne - yes
Stone - yes
Matteau - yes
Koloski - yes
Limoges - yes
Beliveau - yes
Girard – yes
Motion carried: 8-0

Councilor Stone withdrew his motion to demolish the Sullivan Smokestack and adjacent building, Councilor Limoges withdrew his second.

CONSULTATION WITH LEGAL COUNSEL

None.

NON-PUBLIC SESSION PURSUANT TO RSA 91-A:3,II(b) – HIRING

A motion was made by Councilor Stone and seconded by Assistant Mayor Matteau to enter Nonpublic Session pursuant to RSA 91-A:3,II(b) – Hiring, and to invite Mr. MacLean into the session.

Roll call vote:

Contois - yes

O’Hearne - yes

Stone - yes

Matteau - yes

Koloski - yes

Limoges - yes

Beliveau - yes

Girard - yes

Motion carried: 8-0

Entered nonpublic session at 8:30 p.m.

A motion was made by Councilor O’Hearne and seconded by Assistant Mayor Matteau to exit the Non-Public Session.

Roll call vote:

Contois - yes

O’Hearne - yes

Stone - yes

Matteau - yes

Koloski - yes

Limoges - yes

Beliveau - yes

Girard - yes

Motion carried: 8-0

Public session reconvened at 9:04 p.m.

A motion was made by Assistant Mayor Matteau and seconded by Councilor Beliveau to seal these minutes, because it is determined that divulgence of this information likely would affect adversely the reputation of any person other than a member of this board; such minutes to remain sealed unless and until the purpose for which the information discussed has been requested to be sealed no longer applies.

Roll call vote:

Contois - yes

O’Hearne - yes

Stone - yes

Matteau - yes

Koloski - yes
Limoges - yes
Beliveau - yes
Girard - yes
Motion carried: 8-0

ADJOURNMENT

At 9:07 p.m., a motion was made by Councilor O’Hearne and seconded by Assistant Mayor Matteau to adjourn.

Voice vote: motion carried 8-0

Respectfully Submitted,

Julia A. Bizzarro
Clerk to the Council